

Tentative Rulings for August 5, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2406038	CTR VILLAS, LLC VS TTCD INVESTMENTS, LLC	DEMURRER ON 2ND AMENDED COMPLAINT FOR OTHER REAL PROPERTY (OVER \$35,000) OF CTR VILLAS, LLC AS TO CAUSE(S) OF ACTION ACG'S DEMURRERS TO THE FIRST, SECOND, FOURTH, FIFTH, SEVENTH, AND ELEVENTH THROUGH FOURTEENTH CAUSES OF ACTION BY A C G FUNDING, INC.

Tentative Ruling:

Moving party: Defendant ACG Funding, Inc.

Responding party: Plaintiffs CTR Villas, LLC, Andrea Gregg, Huntsman West Foundation

This action concerns an alleged fraudulent scheme to encumber and foreclose upon 4 contiguous residential properties: 6099, 6129, 6139, and 6169 Andalusia Avenue, Jurupa Valley. Plaintiff Andrea Gregg, a 71-year-old woman who suffers from a traumatic brain injury, alleges that she formerly owned these 4 properties. She then gifted 3 of them to her non-profit, Huntsman West Foundation, for charitable purposes benefiting victims of abuse, while retaining one as her personal residence. Huntsman West then transferred its interest in the three properties to Plaintiff CTR Villas, LLC, a non-profit, for the same charitable purposes. Larry Krepps is the managing member of CTR.

Plaintiffs allege that since 2021, Defendant Jimmy Victoria cultivated a close relationship with Gregg, exploiting her vulnerability and religious faith. In June 2022, Victoria allegedly took out 4 separate loans from Defendant TTCD Investments, LLC, totaling \$1.473 million \$(392,000 + 408,000 + 449,000 + 224,000), without Plaintiffs' consent. Each of these loans was secured by a deed of trust against one of the four properties. Plaintiffs allege that the underlying loan documents were fabricated or forged. Plaintiffs assert that they never received the loan proceeds.

Plaintiffs allege that Defendant ACG Funding, Inc. acted as TTCD's loan processor, servicer, and agent. They allege that ACG participated in processing, approving, coordinating, and servicing the loans. Plaintiffs further allege that ACG ignored transaction irregularities that a reasonably prudent lender would have investigated.

Plaintiffs also alleged that Victoria fled. After the purported defaults on these loans, TTCD completed non-judicial foreclosure sales on all four properties on 12/26/24, acquiring title to each. TTCD then initiated 4 unlawful detainer actions, which have been consolidated with this case. Plaintiffs assert that because the underlying deeds of trust were fraudulent, the subsequent foreclosures and trustee's deeds upon sale are also void and of no force.

The operative Second Amended Complaint (“SAC”), filed 5/22/26, asserts: (1) fraud (intentional misrepresentation); (2) fraudulent concealment; (3) undue influence/elder financial abuse; (4) conversion; (5) breach of fiduciary duty; (6) negligence; (7) negligent misrepresentation; (8) civil conspiracy; (9) aiding and abetting; (10) constructive trust; (11) quiet title; (12) cancellation of instrument; (13) wrongful foreclosure; (14) slander of title; (15) (*dismissed*); (16) intentional infliction of emotional distress (IIED); (17) negligent infliction of emotional distress (NIED); (18) through (20) (*dismissed*).

* * *

Now, Defendant ACG Funding, Inc. demurs to the 1st, 2nd, 4th, 5th, 7th, and 11th through 14th causes of action for failure to state facts sufficient. ACG argues that the SAC improperly treats all defendants as interchangeable participants in a scheme involving four real properties, and fails to allege defendant-specific conduct. For the fraud and negligent-misrepresentation claims, ACG contends that Plaintiffs do not identify any false statement that ACG made, by whom or in what manner, or Plaintiffs’ reliance on that false statement. For fraudulent concealment, ACG argues that the SAC alleges no fiduciary or contractual relationship, or any alleged direct communication, that imposed a duty on ACG to disclose. As to conversion, ACG asserts that Plaintiffs cannot claim ownership of loan proceeds while alleging they neither authorized nor received the loans. It further asserts that conversion does not lie for real property interest. For breach of fiduciary duty, ACG argues that allegations that it processed or coordinated loans for TTCD do not create a fiduciary relationship with Plaintiffs. ACG further asserts that the quiet title, cancellation of instrument, wrongful foreclosure, and slander of title claims fail because the SAC does not allege that ACG claimed an adverse interest in the properties, held rights under a challenged instrument, caused/conducted a foreclosure, or published a false statement affecting title.

In opposition, Plaintiffs argue that the SAC alleges a coordinated fraudulent scheme, not an ordinary lending dispute or routine nonjudicial foreclosure. Plaintiffs argue that ACG actively and affirmatively participated in originating, processing, reviewing, approving, servicing, and enforcing the challenged loans; accepted or transmitted purported authority documents; coordinated title and closing activity; and ignored obvious irregularities in the loan documentation. Plaintiffs argue that the SAC alleges ACG’s knowing participation and substantial assistance, and that ACG’s knowledge or intent are facts that cannot be resolved on demurrer. Plaintiffs further argue that ACG may be liable for claims arising from allegedly void instruments even if it did not hold record title. Alternatively, Plaintiffs request leave to amend.

In reply, ACG argues that generalized accounts of processing, servicing, red flags, and participation in an alleged fraudulent scheme do not establish the elements of the challenged claims. It otherwise repeats its arguments in the moving papers.

Analysis

Meet & Confer

Code of Civil Procedure section 430.41 requires a meet and confer process via *phone, videoconferencing, or in person* before filing a demurrer. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at § 430.41(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at § 430.41(a)(3).) Here, defense counsel met and conferred with Plaintiff's counsel over the phone on 6/15/26. Defendant complied.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

Fraud (1st Cause of Action), Fraudulent Concealment (2nd Cause of Action), and Negligent Misrepresentation (7th Cause of Action)

Causes of action for "fraud" and "intentional misrepresentation" are all causes of action sounding in "deceit based on intentional misrepresentation." (*Manderville v. PCG&S Group* (2007) 146 Cal.App.4th 1486, 1498, fn. 4.) The elements of fraud are (1) misrepresentation of a material fact (consisting of a false representation, concealment or non-disclosure); (2) knowledge of the falsity (i.e., scienter); (3) intent to deceive and induce reliance; (4) justifiable and actual reliance on the misrepresentation; and (5) resulting damage. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445.)

Fraud actions, including negligent misrepresentation, are subject to strict requirements of particularity in pleading. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216; *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.) A plaintiff must allege what was said, by whom, in what manner (i.e. oral or in writing), when, and, in the case of a corporate defendant, under what authority to bind the corporation. (See *Goldrich v. Natural Y Surgical Specialties, Inc.* (1994) 25 Cal.App.4th 772, 782.) Less specificity is required where the defendant necessarily possesses the information. (*Committee on Children's Television, Inc. v. General Foods Corp.*, *supra*, 35 Cal.3d at 216.) Fraud allegations need not be liberally

construed, general pleading of the legal conclusion of fraud is insufficient, and every element of the cause of action for fraud must be alleged fully, factually and specifically. (*Wilhelm v. Pray, Price, Williams & Russell* (1986) 186 Cal.App.3d 1324, 1331; see also *Quelimane Co., Inc. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) Generally, the particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

The necessary elements for negligent misrepresentation are: (1) the defendant’s assertion of an untrue fact; (2) the fact was believed by the defendant to be true; (3) the defendant lacked a reasonable ground for the belief; (4) the defendant intended to induce the plaintiff’s reliance upon the representation; (5) plaintiff’s justifiable reliance upon the representation; and (6) resulting damage. (*Melican v. Regents of University of California*) (2007) 151 Cal.App.4th 168, 182.)

Here, the SAC alleges that “Defendants” falsely represented that they “had valid authority or consent to record deeds of trust or other instruments encumbering the Properties,” that the “foreclosure proceedings ... were lawful,” and that “Defendants’ acquisition of title through trustee’s sale was valid, final and authorized by law.” (SAC, ¶¶ 92-94.) As to ACG, however, the SAC alleges only that ACG participated in “originating, brokering, processing, approving, servicing, communicating about, or coordinating the loans,” while also “coordinating the ... related default/foreclosure activity,” “communicated with participants, gathered or accepted entity-authority documents, facilitated title approval, coordinated loan closing, received fees, [and] handled or assisted with loan servicing/payment/default issues,” and “participated in conduct directly affecting Plaintiffs’ title, equity, possession, and property rights.” (SAC, ¶¶ 23, 52, 81, 133.)

The SAC does not identify a single statement that ACG made, the ACG employee or agent who made it, the date or manner of the statement (oral/written), the Plaintiff who received that statement, or facts showing any Plaintiff acted in reliance on it. (SAC, ¶¶ 92-96.) The allegation that Plaintiffs “Plaintiffs reasonably relied upon the validity of the recorded public documents” and “apparent authority of Defendants” does not identify an ACG representation or explain how ACG concealed material facts. (SAC, ¶¶ 95, 99-104.)

As to concealment, the SAC does not identify a direct communication, transaction, or a fiduciary relationship between ACG and any Plaintiff. The SAC does not allege that ACG undertook to communicate with Plaintiffs or assumed an independent duty to disclose. The allegations that ACG “undertook to process and verify the transactions in a manner that would directly affect Plaintiffs’ property and title rights” or should have recognized some “red flags” do not, without more, establish a duty to disclose. (SAC, ¶¶ 57, 81.)

Here, therefore, the SAC does not state a fraud claim against ACG or establish its duty to disclose. The court sustains the demurrer to the 1st, 2nd, and 7th claims with leave to amend.

Conversion (4th Cause of Action)

“The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.) “Money cannot be the subject of a cause of action for conversion unless there is a specific, identifiable sum involved....” (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 395.) Conversion is “a tort that may be committed only with relation to personal property and *not* real property.” (*Munger v. Moore* (1970) 11 Cal.App.3d 1, 7, emphasis added.)

Here, the allegations concerning real-property interests cannot support conversion under the *Munger* standards, while the allegations concerning loan proceeds do not identify a specific sum that Plaintiffs actually owned or possessed. Rather, the SAC alleges that Defendants diverted proceeds that Plaintiffs *never* received. (SAC, ¶¶ 46, 121.) There was no identifiable sum belonging to Plaintiffs as pled. The court sustains the demurrer with leave to amend.

Breach of Fiduciary Duty (5th Cause of Action)

This claim requires a “special” relationship beyond a normal lender-borrower relationship. (*Oaks Management Corporation v. Superior Court* (2006) 145 Cal.App.4th 453, 466.) Here, the FAC alleges ACG’s participation in a transaction for TTCD and acted as TTCD’s agent. (SAC, ¶¶ 52, 81, 133.) It does not allege a fiduciary relationship between Plaintiffs and ACG. The court therefore sustains the demurrer to the 5th claim with leave to amend.

Quiet Title (11th), Cancellation of Instrument (12th), Wrongful Foreclosure (13th), Slander of Title (14th)

Quiet Title

The elements of a quiet title action are (1) legal description and street address of the property; (2) plaintiff’s title or interest and the basis; (3) defendant’s asserting adverse claim or antagonistic property interest; (4) date as of which the determination is sought; and (5) prayer for determination of title. (CCP § 761.020.)

Here, as to ACG, the SAC does not allege that ACG holds title or otherwise asserts an adverse interest in the four properties. It does not plead an adverse claim by ACG. The court sustains the demurrer to the 11th cause of action with leave to amend.

Cancellation of Instrument

Cancellation of instruments requires: (1) a written instrument; (2) a reasonable apprehension that it may cause serious injury to someone; and (3) as to whom it is void or voidable. (Civil Code §3412.)

Here, the SAC does not allege that ACG executed, recorded, or requested recordation of any written instrument. It also does not allege that ACG claims rights under or holds an interest in any identified instrument. This is insufficient. The court sustains the demurrer to the 12th cause of action with leave to amend.

Wrongful Foreclosure

“Civil Code sections 2924 ... ‘provide a comprehensive framework for the regulation of a nonjudicial foreclosure sale pursuant to a power of sale contained in a deed of trust.’” (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 101.) “The statutory scheme has three purposes: ‘(1) to provide the creditor/beneficiary with a quick, inexpensive and efficient remedy against a defaulting debtor/trustor; (2) to protect the debtor/trustor from wrongful loss of the property; and (3) to ensure that a properly conducted sale is final between the parties and conclusive as to a bona fide purchaser.’” (*Id.* at 102.)

The elements for wrongful foreclosure are: (1) trustee caused an illegal, fraudulent or willfully oppressive sale of real property pursuant to a power of sale in a deed of trust; (2) the party attacking the sale was prejudiced or harmed; and (3) the trustor tendered the amount of the indebtedness or was excused from tendering. (*Miles v. Deutsche Bank National Trust Company* (2015) 236 Cal.App.4th 394, 408.) Technical violations are insufficient as “the foreclosure must have been entirely unauthorized on the facts of the case.” (*Id.* at 409.)

Here, the SAC alleges that TTCD was the “foreclosing creditor,” “named beneficiary on the deeds of trust,” and purchaser under the trustee’s deeds. (SAC, ¶¶ 22, 51, 61-64.) The SAC does not allege sufficient foreclosure-specific conduct of ACG’s part. The court sustains the demurrer with leave to amend.

Slander of Title

The elements of slander of title are: (1) a publication, (2) which is without privilege or justification, (3) which is false, and (4) which causes direct and immediate pecuniary loss. (*Truck Insurance Exchange v. Bennett* (1997) 53 Cal.App.4th 75, 84.) Here, the SAC does not identify a particular instrument ACG published or caused another entity/person to publish. Allegations that ACG processed or coordinated loans and foreclosure activity are not sufficient to satisfy the necessary publication element. The demurrer is sustained with leave to amend.

Summary:

Sustain the demurrer to the 1st, 2nd, 4th, 5th, 7th, 11th, 12th, 13th, and 14th causes of action with 21 days' leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406420	DUPUY VS GUMM	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, TO ANDREA GUMM; BY JESSIE DUPUY, KENNETH MICHAEL DUPUY
CVRI2406420	DUPUY VS GUMM	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET TWO, TO ANDREA GUMM; BY JESSIE DUPUY, KENNETH MICHAEL DUPUY
CVRI2406420	DUPUY VS GUMM	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO BY JESSIE DUPUY, KENNETH MICHAEL DUPUY

Tentative Ruling:

Moving party: Kenneth Micheal Dupay and Jessie Dupay, Plaintiffs and Cross-Defendant, in pro per ("the Dupays")

Responding party: Cross-Complainant Andrea Gumm

On November 21, 2024, a Complaint was filed for injunctive relief and damages for: (1) civil harassment; (2) private nuisance; (3) intentional infliction of emotional distress (IIED); (4) unlawful noise disturbance (5) reckless and dangerous driving; (6) unlawful noise disturbance; (7) negligence; (8) intentional infliction of emotional distress, negligence, and assault; and (9) intentional interference with quiet enjoyment. A First Amended Complaint was filed on January 3, 2025.

A Second Amended Complaint was filed on February 20, 2025 for: (1) civil harassment (injunctive inclusive, relief only); (2) private nuisance; (3) intentional infliction of defendants. emotional distress (IIED); (4) negligence (including reckless driving); and (5) intentional interference with quiet enjoyment unlimited civil jurisdiction). A Third Amended Complaint was filed on August 19, 2025.

An Answer was filed on April 9, 2025. A Cross-Complaint was filed on May 6, 2025 for: (1) civil harassment; (2) intentional infliction of emotional distress; (3) private nuisance; (4) conspiracy; and (5) negligence.

The Dupuys now move to compel Andrea Gumm to serve further responses, without objection, to (1) Special Interrogatories, Set Two, Nos. 2636-45; 47-48; and 50; (2) Requests for Admission, Set Two, Nos. 37-38; 41; 44-48; and (3) Requests for Production of Documents, Set Two, Nos. 42, 50, 52, 54-55. For each motion, the Dupays also ask for sanctions in the amount of \$250.

The issues are the same for the three concurrent motions, and the Court's tentative is the same. The tentative is discussed in the context of the Motion to Compel Further Responses to Special Interrogatories, Set Two.

These motions are made on grounds that Andrea Gumm's responses are evasive, incomplete, objection-heavy, and fail to comply with CCP §§ 2030.220, 2030.230 and 2030.300. Several responses improperly rely on vague references to writings without identifying specific documents or Bates numbers, while other responses consist of boilerplate objections and fail to provide the facts requested.

The motion as to production is made under CCP § 2031.310 and the motion as to RFAs is made under CCP § CCP § 2033.210 and 2033.220.

In Opposition, Andrea Gumm contends that (1) this motion is untimely because movants failed to file this Motion within the mandatory 45-day deadline of CCP §2031.310 and (2) movants failed to comply with the mandatory meet and confer requirements of CCP §§ 2031.310(b)(2) and 2016.040. Andrea Gumm asks for sanctions in the amount of \$2,763.40.

In the prior motions to compel further responses from Arthus Lester Gumm, no sanctions were imposed against movant. Likewise, the Court does not impose sanctions here.

The motion as to production is made under CCP § 2031.310 and the motion as to RFAs is made under CCP § CCP § 2033.210 and 2033.220.

Analysis

I. Chronology

Here, on February2, 2026, the Dupuys served Special Interrogatories, Set Two, limited to the First Amended Cross-Complaint ("FACC") only on Plaintiff/Cross Complainants Arthur Lester Gumm (and Andrea Gumm). The service included Requests for Admission, Requests for Production of Documents, Special

Interrogatories, and Form Interrogatories as separate sets for each responding party. (Declaration of Kenneth Michael Dupuy (“Dupuy Decl.”), ¶12.)

The moving Dupuy Decl. does not include reference to attached exhibits in the body of the declaration. The attached exhibits are:

- A. 2/2/26 Service email (with discovery attached);
- B. 2/3/26 Clarification email;
- C. Propounded Special Interrogatories, Set Two to Andrea Gumm.
- D. Andrea Gumm’s responses to Special Interrogatories, Set Two.
- E. Verifications of Andrea Gumm executed on March 18, 2026.
- F. 3/7/26 Meet and Confer Email;
- G. 3/18/26 Final Meet and Confer Letter;
- H. 3/24/26 Defense Response Email;
- I. 4/1/26 Supplemental Service Email.

Andrea Gumm served responses dated March 6, 2026. (Dupuy Decl., ¶13.) On March 7, 2026, Mr. Dupuy sent a meet and confer email to counsel for Andrea Gumm identifying deficiencies in the responses, including improper document references, objection-only responses, and failure to provide complete responses. (Dupuy Decl., ¶15.) Mr. Dupuy requested code-compliant responses and attempted to resolve the issues without court intervention. (Dupuy Decl., ¶16.) On March 18, 2026, Mr. Dupuy sent a final meet and confer email providing an additional opportunity to cure the deficiencies. (Dupuy Decl., ¶17.) Responding Party did not provide code-compliant supplemental responses resolving the issues raised in this motion. (Dupuy Decl., ¶18.)

I. Timeliness

CCP § 2030.300(c) provides: “Unless notice of this motion is given within 45 days of the service of the verified response ... the propounding party waives any right to compel a further response to the interrogatories.” California courts interpret such 45-day statutory deadline as mandatory and jurisdiction, meaning the trial court has no jurisdiction to entertain an untimely motion. (*Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (2022) 84 Cal. App. 5th 127, 1371 (2022); *Vidal Sasson, Inc. v. Sup. Ct.* (1983) 147 Cal. App. 3d 681, 683 (holding that deadlines for motions to compel further responses are “mandatory and the court may not entertain a belated motion to compel”); see also *Rab v. Weber* (2023) 91 Cal. App. 5th 1337, 1347 (same regarding document requests).

Here, it is undisputed that unverified written responses were initially served. On March 19, 2026, Andrea Gumm's verification was served by email. (Opposing Declaration of Karn E. Jung ("Jung Decl."), ¶3, Ex. 1.) The deadline for a motion to compel further responses was then a date that was 45 days after March 19, 2026, plus two court days. May 5, 2026 was the deadline. However, the motion was not filed until May 11, 2026. (Jung Decl., ¶4, Ex. 2.)

"Thus, when verifications are provided electronically, the deadline for filing the motion is 45 calendar days plus 2 court days after service of verifications. [CCP § 1010.6(a)(3); *Golf & Tennis Pro Shop, Inc. v. Sup.Ct. (Frye)* (2022) 84 CA5th 127, 136-137, 300 CR3d 225, 232—motion filed 1 day late was untimely]

Delaying the motion beyond the 45-day time limit *waives* the right to compel a further response to the interrogatories. [CCP § 2030.300(c); see *Vidal Sassoon, Inc. v. Sup.Ct. (Halpern)* (1983) 147 CA3d 681, 685, 195 CR 295, 298—court *lacks jurisdiction* to order further answers after 45 days]"

In *Golf & Tennis Pro*, supra, the deadline for a motion to compel discovery responses was May 4, 2021. (*Golf & Tennis Pro*, at 136-137.) While the moving party there timely served the opposing counsel via email on May 4, 2021, the notice did not get filed until May 5, 2021. (*Id.*, 132, fn 2.) The moving party used a third party electronic legal service provider in connection with submitting the motion, and received a notification on May 4, 2021 that the electronic filing was "Under Court Clerk Review." (*Id.*) However, the motion did not get actually filed until May 5, 2021. The Fourth Appellate District Court in that case held: "Petitioner did not file its notice of motion until May 5, 2021. That means the trial court properly denied the motion ... as untimely." (*Id.* at 137) The Fourth Appellate District Court in *Golf & Tennis Pro Shop* explained that the 45-day deadline is "mandatory" and that the court had no jurisdiction to consider a belated motion to compel. *Id.*

Here, under *Golf & Tennis Pro*, the Motion wasn't filed until May 11, 2026 and using the March 19, 2026 date, the motion is untimely and the Court is without jurisdiction to consider it.

II. Meet and Confer

Additionally, the Dupuys have not complied with the meet and confer requirement for this motion. Under CCP § 2030.300(b)(1), a motion under CCP § 2030.300(a) shall be accompanied by a meet and confer declaration under Section 2016.040.CCP § 2016.040(a) provides: "(a) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either ***in person, by telephone, or by videoconference***, to informally resolve each issue presented by the motion."

Here, there is no indication that the Dupuys complied with the above. While it appears there were email communications, there is no indication that a meet and confer was accomplished in person, by telephone or by video conference. For this procedural reason the Court denies the motion.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507410	BATRES VS FCA US LLC	DEMURRER ON 1ST AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF CRYSTAL BATRES BY FCA US LLC

Tentative Ruling:

Moving Party: Defendant FCA US, LLC

Responding Party: Plaintiff Crystal Batres

This is a lemon law case. On 4/24/2026 Crystal Batres ("Plaintiff") filed the operative first amended complaint ("FAC") against FCA, US LLC ("FCA") and I-10 Chrysler Dodge Jeep Ram ("Dealership") asserting the following causes of action: (1) violation of Song-Beverly (Civil Code § 1793.2(d)); (2) violation of Song-Beverly (Civil Code § 1793.2(b)); (3) violation of Song-Beverly (Civil Code § 1793.2(a)(3)); (4) breach of implied warranty of merchantability; (5) negligent repair; and (6) fraudulent concealment.

Now, FCA demurs to the sixth cause of action as alleged in the FAC. FCA argues the sixth cause of action for fraudulent concealment fails because Plaintiffs cannot establish a direct transaction with FCA, the economic loss rule applies, and the allegations lack the required specificity for a fraud-based claim.

In opposition, Plaintiff argues *Dhital* holds that the economic loss rule does not bar fraudulent concealment claims in the lemon law context, that the complaint alleges a duty to disclose and transactional relationship, and that the cause of action otherwise properly states facts sufficient.

In reply, FCA restate the arguments from the moving papers.

ANALYSIS

A. Meet & Confer Requirement

CCP § 430.41 requires a meet and confer process via **phone or in person** before filing a demurrer five days before the responsive pleading is due. The meet and confer process requires the moving party to identify the causes of action or allegations

subject to attack and the plaintiff must provide legal support for its position. (CCP § 430.41(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP § 430.41(a)(3).)

FCA satisfied the meet and confer requirement. (Declaration of Andrew Gahan, ¶ 2.)

B. Demurrer – Merits

The function of a demurrer is to test the legal sufficiency of a pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

i. Fraudulent Concealment Cause of Action – Specificity

Concealment requires: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.) As concealment is a species of fraud, it must also be pled with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.) Less specificity is required where the defendant necessarily possesses the information. (*Committee*, *supra*, 35 Cal.3d at 216.)

The case of *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 addressed the sufficiency for concealment for pleading purposes in fraud in a lemon law case. The California Supreme Court deferred the matter pending consideration of the related issue in *Rattagan v. Uber Techs., Inc.* (Dec. 1, 2021, S272113) regarding the economic loss rule in concealment cases. After the Court issued its decision in *Rattagan*, the Court dismissed review.

The *Dhital* court found that it was sufficient that plaintiffs alleged a transmission defect in numerous vehicles, including the plaintiff's, the defendant knew of the defect and the hazards they posed, defendant had exclusive knowledge of the defect and failed to disclose that information, defendant intended to deceive plaintiffs by concealing known defects, the plaintiffs would not have purchased the car if they had known of the defects, and they suffered damages on the sums paid to purchase the vehicle. (*Id.* at 843-844.)

Here, Plaintiff pleads the same facts as found to be sufficient in *Dhital*. Plaintiff alleges that there is an engine defect that is a safety hazard. (FAC, ¶¶ 17-24.) The complaint alleges FCA had exclusive knowledge of the issue. (*Id.* at ¶¶ 29-45.) The complaint also alleges FCA actively concealed the defect and that had Plaintiffs known about the defect, he would not have purchased the vehicle. (*Id.* at ¶ 32). This is sufficient for pleading purposes.

Plaintiff's cause of action for fraudulent concealment is plead with sufficient specificity to survive demurrer.

ii. Fraudulent Concealment Cause of Action - Duty to Disclose

As explained in *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311: “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’ ” The last three require an evidence of some transaction, i.e. direct dealings between the plaintiff and the defendant. (*Id.* at 311-312.) The plaintiff had sued her doctor, the manufacturer and a supplier regarding the malfunction of a medical device (providing cold therapy). (*Id.* at 286.) The plaintiff had rented the device from a supplier. (*Id.* at 287.) The court found that there was no duty to disclose because there was no relationship between the plaintiff and the manufacturer, no evidence that the manufacturer knew that the plaintiff even had the device (since she obtained it from a supplier), and that there was no evidence that the manufacturer advertised to the public. (*Id.* at 314.)

In *Dhital*, supra, 84 Cal.App.5th at 844, the court found a relationship for pleading purposes based on allegations that the plaintiffs purchased a car from the dealership backed by an express warranty, and that the authorized dealership was an agent of the manufacturer. Here, Plaintiff alleges she entered into a warranty contract with FCA. (FAC, ¶¶ 7-8.) The complaint also alleges that FCA has been unable to repair the vehicle after presentation to an authorized dealership, which served as an agent of FCA. (*Id.* at ¶¶ 50-52.) That demonstrates a transactional relationship for pleading purposes. Also, as discussed above, Plaintiff pleads exclusive knowledge. (*Id.* at ¶¶ 29-45.)

In reply, FCA cites to *Bjoin v. J-M Mfg. Co., Inc.* 113 Cal.App.5th 884 in support of *Bigler-Engler*'s requirement for a more specific transactional relationship. But *Bjoin* is not a Song-Beverly case, making *Dhital* the applicable authority here. And again, Plaintiff alleges a direct, express warranty contract with FCA. (FAC, ¶¶ 7-8.)

The complaint sufficiently pleads a duty to disclose.

iii. Fraudulent Concealment Cause of Action - Economic Loss Rule

FCA's motion also argues the economic loss rule bars Plaintiff's claim for fraud.

The economic loss rule bars "a plaintiff's tort recovery of economic damages unless such damages are accompanied by some form of physical harm (i.e. personal injury or property damage.)" (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 777.) Under the economic loss rule, "where a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only economic losses. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) Quite simply, the economic loss rule prevents the law of contract and the law of tort from dissolving one into the other. (*Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1130, citing *Robinson Helicopter, supra*, 34 Cal.4th at p. 988.) "[E]conomic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property." (*Food Safety Net Services v. Eco Safe Systems USA, Inc., supra*, 209 Cal.App.4th at 1130, fn. 4, citing *Robinson Helicopter, supra*, 34 Cal.4th at p. 988.)

The court in *Robinson Helicopter* specifically refused to address the issue of whether the economic loss rule applies to fraudulent concealment. In *Dhital*, the appellate court expressly found that the economic loss rule did not apply to the plaintiffs' fraudulent inducement by concealment claim in the lemon law context:

To hold, at the demurrer stage, that plaintiffs' fraud claim is barred by the economic loss rule, we would need to conclude, as Nissan urges us to do, that (1) despite the Supreme Court's statement in *Robinson*, there is no exception to the economic loss rule for fraudulent inducement claims (or at least no exception that encompasses the claim plaintiffs allege in the SAC), or (2) plaintiffs have not adequately pleaded a claim for fraudulent inducement under California law We reject both arguments and conclude the economic loss rule does not bar plaintiffs' claim.

(84 Cal.App.5th at 839.) The court further stated:

Robinson left undecided whether concealment-based claims are barred by the economic loss rule. What follows from its analysis, however, is that concealment-based claims for fraudulent inducement are not barred by the economic loss rule. The reasoning in *Robinson* affirmatively places fraudulent inducement by concealment outside the coverage of the economic loss rule. We now hold that the economic loss rule does not cover such claims. First, as discussed, *Robinson* identified fraudulent inducement as an existing exception to the economic loss rule, before it proceeded to analyze the particular claims at issue in that case relating to fraud during

the performance of a contract. [Citation.] For fraudulent inducement and the other existing exceptions listed in *Robinson*, “ ‘the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm.’ ” [Citation.]

In our view, that independence is present in the case of fraudulent inducement (whether it is achieved by intentional concealment or by intentional affirmative misrepresentations), because a defendant's conduct in fraudulently inducing someone to enter a contract is separate from the defendant's later breach of the contract or warranty provisions that were agreed to.

(*Id.* at 840-41.) Review of *Dhital*, *supra*, was granted pending consideration and disposition of a related issue in *Rattagan v. Uber Technologies*, S272113, i.e. as it relates to the economic loss rule. (*Dhital v. Nissan North America* (2023) 523 P.3d 392.) The Supreme Court issued its decision in *Rattagan*, *supra*, 553 P.3d 1213 on August 22, 2024. The court held in *Rattagan* that “the economic loss rule does not apply to limit recovery for intentional tort claims like fraud. The doctrine only applies to bar tort recovery for negligently inflicted economic losses unaccompanied by physical or property damage...” (*Rattagan*, 553 P.3d at 1236.) However, the court in *Rattagan* limited its holding to fraudulent concealment claims based on conduct occurring during the contractual relationship, and declined to address fraudulent inducement by concealment claims. It noted:

“Rattagan’s tort claims are, of course, based on alleged conduct committed during the contractual relationship but purportedly outside the parties’ chosen rights and obligations. This court has granted review in two other cases – *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 300 Cal.Rptr.3d 715, review granted Feb. 2023, S277568 and *Kia America v. Superior Court* (Feb. 3, 2022, D079858)[nonpub. Opn.], review granted April 20, 2022, S273170 – both of which involve claims of fraudulent inducement by concealment claims as well as the potential interplay with remedies available under the Song-Beverly Consumer Warranty Act (Civ. Code § 1791 et. seq.). We do not address these issues here.” (*Rattagan*, *supra*, 553 P.3d at 463, fn. 12.)

Thus, the Supreme Court did not consider whether the economic loss rule applies in the context of lemon law claims. Following the decision in *Rattagan*, the Supreme Court dismissed its review of the *Dhital* decision, making it good law. In *Dhital*, *supra*, 84 Cal.App.5th at 839, the court expressly found that the economic loss rule did not apply to fraudulent inducement by concealment claims asserted in a lemon law matter. As such, the economic loss rule is not applicable to Plaintiff’s cause of action for fraudulent concealment.

For these reasons, the court **OVERRULES** the demurrer to the sixth cause of action.